

Based on the information and evidence presented, bifurcating the trial of liability and damages would not promote economy and efficiency. While trial time may be saved in the event bifurcation were ordered and the jury found Costco not liable, as plaintiff points out, bifurcation is not the default in personal injury cases. Under Costco's rationale, bifurcation would be ordered in every disputed liability case would result in a bifurcated trial. Bifurcating the trial could result in a longer, not shorter, trial because there would be two sets of opening statements, two sets of closing arguments, and two sets of jury deliberations. The court does not believe there is any significant risk of prejudice to Costco in the jury hearing evidence of plaintiff's injuries and damages before deliberating on liability. Accordingly, the court intends to deny the motion.

Tentative Ruling

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Tentative Ruling

Re: *Accardo v. Najafi, M.D.*
Superior Court Case No. 21CECG01831

Hearing Date: June 10, 2026 (Dept. 403)

Motion: By Plaintiffs for Protective Order to Reduce the Number of
Defendant's Designated Standard of Care Expert Witnesses

**If oral argument is timely requested, it will be entertained on
Thursday, June 11, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To grant. Defendant is limited to one expert on the standard of care for trial. By June 17, 2026, defendant shall identify which designated expert they elect to designate as their standard of care expert.

Explanation:

In this medical malpractice action defendant has designated two expert witnesses on the same topic – the standard of care, causation and damages. Plaintiffs move for a protective order requiring defendant to choose one.

The court “make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense.” (Code Civ. Proc., § 2034.250.) The court has discretion to limit the number of expert witnesses testifying at trial to avoid needless cumulative evidence and undue consumption of time. (Evid. Code, § 723.)

As defendant points out, we are not at trial, but in the discovery stage. However, at this point we are about four weeks from start of trial. Defense counsel only designated two experts on the standard of care because he did not know at the time of designation which of the two would be available to testify at trial. Defendant should be able to nail that down at this point. There is no need for plaintiffs to incur the burden and expense of deposing two experts on the same topics when only one will be testifying. It would be an undue burden and expense (Code Civ. Proc., § 2034.250), supporting the grant of this motion for protective order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 6-9-26 .
(Judge's initials) (Date)